

SALE / PURCHASE AGREEMENT

THIS SALE AND PURCHASE AGREEMENT (the “Agreement”) is made and entered into on this **24th day of December, 2025** (the “Effective Date”),

BY AND BETWEEN:

OMEGA ELECTRONICS PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, bearing CIN **U98765TG2016PTC432109**, having its registered office at **Plot No. 21, HITEC City, Hyderabad – 500081, Telangana, India**, represented herein by its authorized signatory **Mr. Rajat Mehra**, Chief Executive Officer (hereinafter referred to as the “Seller”, which expression shall, unless repugnant to the context, include its successors and permitted assigns);

AND

SIGMA RETAIL PRIVATE LIMITED, a company incorporated under the Companies Act, 2013, bearing CIN **U54321TG2020PTC678901**, having its registered office at **Plot No. 50, Whitefield, Bengaluru – 560066, Karnataka, India**, represented herein by its authorized signatory **Ms. Ananya Roy**, Managing Director (hereinafter referred to as the “Buyer”, which expression shall, unless repugnant to the context, include its successors and permitted assigns).

(The Seller and Buyer are individually referred to as a “Party” and collectively as the “Parties”).

RECITALS

A. The Seller manufactures, supplies, and sells **electronic consumer goods**, including smartphones, laptops, and accessories (the “Products”).

B. The Buyer desires to purchase such Products from the Seller, and the Seller agrees to sell under the terms and conditions set forth in this Agreement.

1. SALE AND PURCHASE

1.1 The Seller agrees to sell and the Buyer agrees to purchase **1,000 units of Model X Smartphones** and **500 units of Model Y Laptops** (the “Products”).

1.2 The Products shall conform to the specifications detailed in Schedule A attached hereto.

1.3 Delivery of Products shall occur at **Buyer’s warehouse, Plot No. 12, Industrial Area, Bengaluru – 560100, Karnataka, India**.

2. PURCHASE PRICE AND PAYMENT

2.1 The total purchase price for the Products is **INR 3,50,00,000/- (Rupees Three Crore Fifty Lakh Only)**.

2.2 Payment shall be made as follows:

- **30% advance** upon execution of this Agreement;
- **50% upon delivery** of Products at the warehouse;
- **20% within 15 days** after successful inspection and acceptance.

2.3 All payments shall be made via wire transfer to the Seller's designated bank account.

3. DELIVERY AND RISK

3.1 Delivery shall occur within **60 days** from the Effective Date.

3.2 Risk of loss or damage shall pass to the Buyer upon delivery at the designated warehouse.

3.3 The Seller shall ensure that Products are packaged securely and comply with industry shipping standards.

4. WARRANTIES AND REPRESENTATIONS

4.1 The Seller warrants that the Products shall be free from defects in material and workmanship for a period of **12 months** from the date of delivery.

4.2 The Seller represents that the Products comply with all applicable Indian standards and certifications.

4.3 The Buyer shall notify the Seller of any defects within **7 days** of inspection; the Seller shall replace or repair defective Products at its cost.

5. OBLIGATIONS OF THE BUYER

5.1 Make timely payments as per the agreed schedule.

5.2 Inspect the Products upon delivery and report any discrepancies or damages.

5.3 Ensure proper storage and handling of Products to prevent damage or loss.

6. INTELLECTUAL PROPERTY

6.1 The Buyer acknowledges that all trademarks, logos, and brand names on the Products are the exclusive property of the Seller.

6.2 The Buyer shall not modify or sell the Products under any other brand without written consent of the Seller.

7. CONFIDENTIALITY

7.1 Both Parties shall maintain confidentiality regarding pricing, business terms, and proprietary information exchanged under this Agreement.

7.2 This obligation shall survive for **3 years** after termination or completion of the Agreement.

8. TERMINATION

8.1 Either Party may terminate this Agreement in the event of material breach or insolvency, provided **30 days' written notice** is given.

8.2 Upon termination, the Buyer shall pay for all Products delivered and accepted until the termination date.

9. DISPUTE RESOLUTION

9.1 Any dispute arising under this Agreement shall first be attempted to resolve amicably.

9.2 If unresolved, disputes shall be referred to **arbitration under the Indian Arbitration and Conciliation Act, 1996**, with venue at **Bengaluru, Karnataka**.

10. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the **laws of India**.

11. MISCELLANEOUS

11.1 Entire Agreement: This Agreement constitutes the full understanding of the Parties.

11.2 Amendments: Must be in writing and signed by both Parties.

11.3 Force Majeure: Neither Party is liable for delays due to causes beyond reasonable control.

11.4 Severability: Invalid provisions shall not affect the remainder of the Agreement.

12. SIGNATURES

For Omega Electronics Pvt Ltd (Seller)

Signature: _____

Name: **Mr. Rajat Mehra**

Designation: Chief Executive Officer

Date: 24 December 2025

For Sigma Retail Pvt Ltd (Buyer)

Signature: _____

Name: **Ms. Ananya Roy**

Designation: Managing Director

Date: 24 December 2025

Witnesses:

1. Name: **Mr. Arjun Rao** | Signature: _____ | Address: Hyderabad, Telangana
2. Name: **Ms. Kavya Menon** | Signature: _____ | Address: Bengaluru, Karnataka